

Shivraj Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 March 2024 · 2024:AHC:49082-DB · Writ-C No. 9141 of 2024 · **Writ disposed; disconnection-period bill left to clause 6.5.**

HEADNOTE

With the electricity connection already restored, the writ did not survive on that score. The remaining dispute over bill and charges for the period of disconnection was left open to a representation under clause 6.5 of the U.P. Electricity Supply Code, 2005, to be filed within two weeks and dealt with by a reasoned speaking order, preferably within one month.

FACTUAL SUMMARY

Shivraj Yadav petitioned the Allahabad High Court against the State of Uttar Pradesh and the Power Corporation over his electricity supply and the charges raised on him. By the hearing, the connection had already been restored. He still disputed the bill and charges demanded for the period during which supply had remained disconnected. The Corporation was heard through counsel holding brief, and the Division Bench disposed of the writ the same day.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

disconnection-period charges left to clause 6.5

HOLDING

Once the connection stood restored, the main dispute did not survive. On the further dispute over the bill and charges demanded for the period of disconnection, it is open to the petitioner to seek the remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. If that remedy is sought within two weeks, it may be dealt with by a reasoned and speaking order expeditiously, preferably within one month thereafter. The writ was disposed of with that direction. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill Charges demanded for the period of disconnection were not decided in the writ and were left to a clause 6.5 representation, if filed within two weeks, to be dealt with by a reasoned speaking order preferably within one month. ¶ 1

article-226-alternate-remedy-up-supply-code-6.5 With the connection already restored, the Division Bench disposed of the writ and pointed the remaining billing dispute to clause 6.5 without a merits finding on the charges. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND CHARGES DEMANDED FOR THE PERIOD OF DISCONNECTION

Left to a clause 6.5 representation, if sought within two weeks, to be dealt with by a reasoned speaking order preferably within one month. ¶ 1